

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

NICOLE COOPER,

Petitioner

VS.

JEFFREY COOPER,

Respondent

) Case Number: FDI-22-796760

) Hearing Date: May 26, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: ROGER C. CHAN

REQUEST FOR ORDER RE ATTORNEYS FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Nicole Cooper and Respondent Jeffrey Cooper. They married on 6/5/10 and agree they separated on 5/16/22, for a marriage of 11 years and 11 months. The parties do not have minor children in common. Respondent remarried and has a child with his new partner.
- 2) On 3/3/26, Petitioner filed a Request for Order and supportive declarations seeking \$335,269.69 in Family Code section 2030 attorney's fees and costs based on disparity between the parties' respective abilities to pay the cost of litigation. This request is Petitioner's initial request for attorney's fees and costs. Petitioner asserts she has spent \$165,432.19 in attorney's fees and costs to date and estimates an additional \$169,837.50 in future fees and costs (\$129,837.50 in attorney's fees and \$40,000 in costs for an accountant). The matter was set for hearing on 4/9/26.
- 3) On 3/3/26, Petitioner filed Fee Declaration of Ron J. Anfuso, CPA, ABV, CFF, CDFA, FABFA seeking a \$40,000 retainer to be paid directly to the accounting firm. The declaration reflects Petitioner has incurred \$9,377.50 in costs of services rendered.
- 4) On 3/3/26, Petitioner filed an Income and Expense Declaration.

- 1 5) On 4/3/26, the parties agreed to continue the 4/9/26 hearing to 5/26/26. See Stipulation and Order
2 filed 4/2/26.
- 3 6) On 5/12/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for
4 Order. Respondent asserts that Petitioner received \$1,195,071 in overpayment of support.
5 Respondent requests the Court deny or reserve jurisdiction over Petitioner's attorney's fees
6 request until the 8/28/26 Mandatory Settlement Conference on the limited issue of Family Code
7 section 4320 support.
- 8 7) On 5/12/26, Respondent filed a supportive attorney declaration asserting he has spent \$140,124 in
9 attorney's fees and costs to dated and estimates an additional \$75,000 in future fees and costs.
- 10 8) On 5/12/26, Respondent filed an Income and Expense Declaration.
- 11 9) On 5/12/26, Respondent filed a Memorandum of Points and Authorities.
- 12 10) On 5/18/26, Petitioner filed a Reply Declaration disputing that the remaining unresolved issues
13 are limited and reiterating her requests.

14 **B. Findings and Order**

- 15 1) The Findings and Order After Hearing on 11/20/25 (filed 2/18/26) acknowledges the
16 overpayment of support by Respondent to Petitioner and adopts the parties' stipulation to credit
17 Respondent for future spousal support obligations. Therefore, the overpayment of support does
18 not alleviate Petitioner's need for attorney's fees and costs given there is an agreed upon plan for
19 reimbursement.
- 20 2) The Court finds an award of attorney's fees and costs under Family Code section 2030 is
21 appropriate here because there is a demonstrated disparity between the parties in access to funds
22 to maintain counsel and in the ability to pay for legal representation, although Petitioner has
23 ability to pay some of her own fees and costs.
- 24 3) As such, Petitioner's request for Family Code section 2030 attorney's fees is GRANTED in the
25 amount of \$215,124 (i.e., the amount Respondent himself incurred/anticipates incurring) to
26 ensure parity.
- 27 4) Respondent is reasonably likely to have the ability to pay for legal representation for both parties
28 based, in part, on his significant monthly earnings listed on his Income and Expense Declaration
29 filed 5/12/26.

- 1 5) \$215,124 in attorney's fees and costs are reasonable and necessary given the facts and equities of
- 2 this case.
- 3 6) The parties shall meet and confer regarding a payment plan for this fee award.
- 4 7) Counsel for Petitioner shall prepare the Findings and Order After Hearing.
- 5 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
- 6 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
- 7 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
- 8 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
- 9 proposed order after hearing directly to the court. Failure to submit the order after hearing within
- 10 10 days may allow the other party to prepare a proposed order and submit it to the court in
- 11 accordance with CA Rules of Court, Rule 5.125(d).
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